



Attachment F

PROTEST INFORMATION

This attachment is intended to provide Offerors with an overview of the Lead State's protest law, procedures, and requirements, which may be updated and amended without notice. Offerors filing a protest are wholly responsible for locating, understanding, and complying with protest law, procedures, and requirements in effect at the time of the protest.

6.101 Authority to Resolve Protested Solicitations and Awards

(1) Right to Protest

Any actual or prospective bidder, offeror, or contractor who is aggrieved in connection with the solicitation or award of a contract may protest to the Head of the Purchasing Agency and copy the Chief Procurement officer. The protest shall be submitted in writing within 7 days after such aggrieved person knows or should have known of the facts giving rise thereto.

(2) Authority to Resolve Protests

The Chief Procurement Officer, the head of a purchasing agency, or a designee of either officer shall have the authority to settle and resolve a protest of an aggrieved bidder, offeror, or contractor, actual or prospective, concerning the solicitation or award of a contract.

(3) Decision

If the protest is not resolved by mutual agreement, the Chief Procurement Officer, the head of a purchasing agency, or a designee of either officer shall promptly issue a decision in writing. The decision shall: (a) state the reasons for the action taken; and (b) inform the protestant of its right to administrative review as provided in this Chapter.

(4) Notice of Decision

A copy of the decision under Subsection (3) of this section shall be mailed or otherwise furnished immediately to the protestant and any other party intervening.

(5) Finality of Decision

A decision under Subsection (3) of this section shall be final and conclusive, unless fraudulent, or: (a) Any person adversely affected by the decision appeals administratively to the Procurement Review Board in accordance with Section 6.204, Protest of Solicitations or Awards.

(5) Stay of Procurements During Protests

In the event of a timely protest under Subsection (1) of this section, the State shall not proceed further with the solicitation or with the award of the contract until the Chief Procurement Officer, after consultation with the head of the using agency or the head of a purchasing agency, makes a written determination that the award of the contract without delay is necessary to protect substantial interests of the State.



6.101.01 Definitions

6.101.01.1 Interested Party means an actual or prospective bidder, offeror, or contractor that may be aggrieved by the solicitation or award of a contract, or by the protest.

6.101.01.2 Protestor means any actual or prospective bidder, offeror, or contractor who is aggrieved in connection with the solicitation or the award of a contract and who files a protest.

6.101.01.3 Attorney General shall mean the individual assigned by the Attorney General to provide legal assistance to the Department of Finance and Administration.

6.101.02 Complaint to Procurement Officer Complainants should seek resolution of their complaints initially with the Procurement Officer or the office that issued the solicitation. Such complaints may be made verbally or in writing.

6.101.03 Filing of Protest

6.101.03.1 When Filed

Protests shall be made in writing to the head of the purchasing agency and copied to the Chief Procurement Officer, and shall be filed in duplicate within seven (7) days after the protestor knows or should have known of the facts giving rise thereto. A protest is considered filed when received by the Chief Procurement Officer or the head of a purchasing agency. Protests filed after the seven (7) day period shall not be considered.

6.101.03.2 Subject of Protest

Protestors may file a protest on any phase of solicitation or award including, but not limited to, specification preparation, bid solicitation, award, or disclosure of information marked confidential in the bid or offer.

6.101.03.3 Form

To expedite handling of protests, the envelope should be labeled "Protest." The written protest shall include as a minimum the following: (a) the name and address of the protestor; (b) appropriate identification of the procurement and if a contract has been awarded, its number; (c) a statement of reasons for the protest; and (d) supporting exhibits, evidence, or documents to substantiate any claims unless not available within the filing time in which case the expected availability date shall be indicated.

6.101.03.4 Notification of the Attorney General

The Chief Procurement Officer shall submit a copy of the protest to the Attorney General within three days of receipt of the written protest.

6.101.04 Requested Information; Time for Filing

Any additional information requested by any of the parties should be submitted within the time period established by the requesting source in order to expedite consideration of the protest. Failure of any party to comply expeditiously with a request for information by the Chief Procurement Officer or the head of a purchasing agency may result in resolution of the protest without consideration of any information which is untimely filed pursuant to such request.



6.101.05 Stay of Procurements During Protest

When a protest has been filed within 7 days and before an award has been made, the Chief Procurement Officer or the head of a purchasing agency shall make no award of the contract until the protest has been settled unless the Chief Procurement Officer makes a written determination, after consulting with the head of the using agency or the head of the purchasing agency, that the award of the contract without delay is necessary to protect substantial interests of the State.

6.101.06 Making Information on Protests Available

The Chief Procurement Officer or the head of a purchasing agency shall upon written request make available to any interested party information submitted that bears on the substance of the protest except where information is proprietary, confidential, or otherwise permitted or required to be withheld by law or regulation. Persons who wish to keep such information submitted by them confidential should so request by specifically identifying such information within documents submitted, and indicating on the front page of each document that it contains such information. The availability of such information shall be in compliance with 1.301, Public Access to Procurement Information.

6.101.07 Decision by the Chief Procurement Officer or the Head of a Purchasing Agency

6.101.07.1 Time for Decisions

A decision on a protest shall be made by the Chief Procurement Officer or the head of a purchasing agency as expeditiously as possible after receiving all relevant, requested information. If a protest is sustained, the available remedies include, but are not limited to, those set forth in Section 6.201.01, Determination that Solicitation or Award Violates Law, and Regulation 6.202, Remedies Prior to an Award.

6.101.08 Request for Reconsideration

6.101.08.1 Request

Reconsideration of a decision of the Chief Procurement Officer or the head of a purchasing agency may be requested by the protestor, appellant, any interested party who submitted comments during consideration of the protest, or any agency involved in the protest. The request for reconsideration shall contain a detailed statement of the factual and legal grounds upon which reversal or modification is deemed warranted, specifying any errors of law made or information not previously considered.

6.101.08.2 Time for Filing

Requests for reconsideration of a decision of the Chief Procurement Officer or the head of a purchasing agency shall be filed not later than 7 days after receipt of such decision.

6.101.08.3 Time for Acting

A request for reconsideration shall be acted upon as expeditiously as possible. The Chief Procurement Officer or the head of a purchasing agency may uphold the previous decision or reopen the case as such officer deems appropriate.



6.101.09 Effect of Judicial or Administrative Proceedings

The Chief Procurement Officer or the head of a purchasing agency will refuse to decide any protest when a matter involved is the subject of a proceeding before the Procurement Review Board or has been decided on the merits by the Board. If an action concerning the protest has commenced in court, the Chief Procurement Officer or the head of a purchasing agency shall not act on the protest but refer the protest to the Attorney General. This section shall not apply where the Board or a court requests, expects, or otherwise expresses interest in the decision of the Chief Procurement Officer or the head of a purchasing agency.